

Tentative Ruling on Motion to Compel Further, Complete and Code-Compliant Responses:

Moving Defendants request an order compelling Plaintiffs to provide further responses to Form Interrogatories and Requests for Production pursuant to CCP § 2030.210 and 2031.300. Moving Defendants served discovery on the numerous Plaintiffs but brought a combined motion as to all Plaintiffs related to purported common defects in their responses. Moving Defendants also request monetary sanctions in the amount of \$3,500.

Merits of Motion. A party may move for an order compelling further responses to form interrogatories and requests for production if the responses provided were deficient. CCP §§ 2030.300(a) and 2031.310(a). Here, Moving Defendants have identified multiple form interrogatories and request for production that they contend require further responses. After the current motion was filed, Plaintiffs provided further responses. Accordingly, the request to compel further responses is moot. If Moving Defendants determine that the further responses remain deficient, they can always file a new motion related to the further responses after participating in the statutorily required meet and confer process.

Sanctions. A party that successfully makes or opposes a motion to compel further response is entitled to mandatory monetary sanctions unless the party subject to sanctions acted with substantial justification or the imposition of sanctions would be unjust. CCP § 2030.300(d) & 2031.310(h). Sanctions can be imposed even if further responses are provided after a discovery motion is filed. CRC 3.1348(a). Motions to compel further responses must generally be supported by a meet and confer declaration. CCP § 2030.300(b) & CCP § 2031.310(b)(2). A meet and confer declaration must “state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” CCP § 2016.040. The declaration of David Ries filed in support of the motion provides the conclusory statement that the parties have “engaged in robust meet-and-confer efforts.” No specific facts are provided. No copies of meet and confer correspondence were filed with the moving papers. Moving Defendants have failed to provide a sufficient meet and confer declaration that is required to support a motion to compel further responses. Based on the deficient meet and confer declaration, the Court finds that the imposition of sanctions would be unjust.

The motion is **DENIED**. A proposed order was lodged with the Court which will be modified to conform to the Court’s final ruling.

WISER, ET AL. VS. GENERAL MOTORS, LLC

Case Number: 25CV-0207048

Tentative Ruling on Demurrer: This matter is on calendar for hearing on Defendant GM’s Demurrer to the Complaint, filed June 12, 2025. On July 23, 2025, Plaintiff filed a First Amended Complaint. This is permitted per CCP § 472(a) and renders the Demurrer moot. The Court notes that the FAC was filed one day past the date for filing an opposition to the demurrer. However, proof of service indicates timely notice, so Defendant is not prejudiced. The Court will accept the late filing and drop the matter from calendar. No appearances are necessary.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion for Discovery of Peace Officer Personnel and Other Documents (“Pitchess”): Defendant City of Redding moves pursuant to Evid. Code § 1043 for disclosure of

Plaintiff's peace officer personnel records from custodian and non-party County of Siskiyou, who opposes the Motion. Plaintiff has not filed an opposition to the Motion.

Merits of Motion: A motion to obtain a peace officer's personnel records or other documents maintained by a law enforcement agency related to a peace office is commonly known as a *Pitchess* motion. See *Pitchess v. Superior Court* (1974) 11 Cal.3d 531. *Pitchess* motions have been codified in Evid. Code § 1043 which requires a written motion in both civil and criminal actions. Evid. Code § 1043(a). The motion shall include: "1) identification of the proceeding in which discovery or disclosure is sought, the party seeking discovery or disclosure, the peace or custodial officer whose records are sought, the governmental agency that has custody and control of the records, and the time and place at which the motion for discovery or disclosure shall be heard, 2) A description of the type of records or information sought" and "3) Affidavits showing good cause for the discovery or disclosure sought, setting forth the materiality thereof to the subject matter involved in the pending litigation and stating upon reasonable belief that the governmental agency identified has the records or information from the records." Evid. Code § 1403(b).

The discovery motion must include, among other things, a description of the type of records or information sought and affidavits showing good cause for their discovery or disclosure. *Riske v. Sup. Ct.* (2016) 6 Cal.App.5th 647, 655. "Good cause for discovery of peace officer personnel records under the statutory scheme exists when the party seeking the discovery shows the "materiality" of the information to the subject matter of the pending litigation and states upon "reasonable belief" that the agency has the type of information sought." *Id.* This initial burden is a "relatively low threshold for discovery". *Id.* A sufficient threshold showing is established if the party seeking records demonstrates through affidavits a "plausible factual foundation" for how the records are material to the subject matter of the pending litigation. *Id.* A "good cause" declaration may be made on information and belief and may be properly made by counsel. *Abatti v. Sup. Ct.* (2003) 112 Cal.App.4th 39, 51. If the threshold good cause is established, the second step is an *in-camera* review by the court in conformity with Evid. Code § 915 and the court shall disclose only that information falling within the statutorily defined standards of relevant. *Riske, supra* 6 Cal.App.5th at 655-56.

Plaintiff's Third Amended Complaint asserts causes of action for sexual harassment and retaliation in violation of the FEHA and failure to prevent harassment by the Redding Police Department. Plaintiff recently gave a deposition, where she testified that she had many of the same problems during the course of her employment with Siskiyou County that she alleges against RPD. The excerpts of the deposition demonstrate that Plaintiff's personnel documents are likely to show similar complaints by Plaintiff, as well as similar job performance problems. The Declaration of Ashley Riser establishes that these facts are relevant to the City's defenses, which include that many of Plaintiff's allegations are fabricated or exaggerated, and that Plaintiff was terminated for legitimate performance reasons. Plaintiff also seeks to establish that Plaintiff has a pattern of behavior across multiple agencies that undermines her claims. Defendant has made the requisite showing of good cause and relevance to permit discovery.

The City's request is narrowly tailored to lead to the discovery of admissible evidence. Specifically, the City seeks: 1. Documents related to Plaintiff's employment performance, including evaluations, counseling memos, and documents related to a Performance Improvement Plan; 2. Documents related to leaves of absence taken by Plaintiff; 3. Disciplinary documents including separation and reinstatement notices; 4. Documents related to Plaintiff's separation from

the County; 5. Complaints by Plaintiff relating to sexual harassment, discrimination, or workplace retaliation; 6. Workplace investigations involving alleged misconduct by Plaintiff; 7. Workplace investigations involving allegations of misconduct made by Plaintiff; 8. Plaintiff's wage records for March 2024 – June 2025. The Court has reviewed each of these categories in light of the evidence and argument provided in the Declaration of Ashley Riser to determine whether good cause exists for each category. Given Plaintiff's allegations, the Court finds that the information and documents sought are material to Plaintiff's claims or Defendant's defenses. The documents are relevant and would either be admissible or could potentially lead to the discovery of admissible evidence.

Protective Order: Siskiyou County asks for any disclosure of records to be limited by a new proposed protective order. Defendant City of Redding asks the Court to permit disclosure under the protective order already entered in this case on December 12, 2024. Neither of the parties make any substantive argument regarding why the current protective order is or is not sufficient. The parties are directed to meet and confer on this issue, and to provide a stipulation and order to either the current protective order, or Siskiyou's proposed protective order, if possible. If the issue requires Court intervention, the matter will be decided at the *in-camera* review prior to disclosure of records.

Witness Interviews: The City's Motion and Reply contain a brief request – presumably for a Court order - to ask County witnesses about the content of the released material, and to conduct "interviews" of any potential witnesses identified in the personnel records who may have been involved, to obtain context or clarify certain facts. County of Siskiyou opposes this request. The Court declines to make such an order.

The Motion is **GRANTED**. A proposed order was lodged with the Court and will be executed. The Court will conduct an *in-camera* review of the documents prior to their release. All released documents will be designated Confidential under a protective order as detailed above. An appearance is necessary on today's calendar to schedule the *in-camera* review.

WYNHOFF VS. CITY OF REDDING

Case Number: 24CV-0204924

Tentative Ruling on Motion to Compel Compliance with Nonparty Subpoena: Defendant City of Redding moves for an order compelling nonparty Brett Leonard (a former RPD officer) to comply with Defendant's deposition subpoena for production of business records. The Motion is made pursuant to CCP §§ 1987.1, 2020.010, 2020.220, 2020.410, 2025.480 and CRC 3.1345(b)(1) on the grounds that Leonard has failed to produce any responsive documents or respond at all to the subpoena. City also moves for an order of contempt and for the statutory award of \$500 for Mr. Leonard's disobedience of the Subpoena. No opposition or motion to quash has been filed.

Service of the Motion: The instant Motion was served on the Nonparty Subpoenaed Witness by email only. California Rule of Court 3.1346 requires written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record. There is no evidence in the record that Brett Leonard agreed to accept service of the Motion by email.